

1.

CASE #	CASE NAME	HEARING NAME
CVRI2602920	DREAD vs WEIDNER PROPERTY MANAGEMENT LLC	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike [a pleading] or any part thereof[.]” (C.C.P. § 435(b)(1).) The Court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, “[s]trike out any irrelevant, false, or improper matter inserted in any pleading.” (C.C.P. § 436(a).) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (C.C.P. § 437(a).)

A. Negligence-Based Causes of Action

Defendant moves to strike the 2nd cause of action for negligence, 3rd cause of action for negligent hiring, 9th cause of action for negligent infliction of emotional distress, and 11th cause of action for negligent misrepresentation under the “primary right” theory, contending that the causes of action all sound in negligence. Although Defendant cites to *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888 in support of its contention, *Mycogen* does not support Defendant’s argument. Rather, the California Supreme Court explained in *Mycogen* that “the primary right theory ... is invoked ... when a plaintiff attempts to divide a primary right and enforce it in two suits.” (*Id.* at 904 [internal punctuation omitted].) There is no second suit here.

To the extent that Defendant seeks to strike the causes of action because they are all based on negligence, the causes of action are not duplicative because the allegations of duty are different. (Complaint, ¶¶ 26, 30, 61, 73.) Further, an argument that an entire cause of action is duplicative is an improper basis for a motion to strike. As stated in *Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1281: “[I]t is improper for a court to strike a whole cause of action of a pleading under Code of Civil Procedure section 436....While under section 436, a court at any time may, in its discretion, strike portions of a complaint that are irrelevant, improper, or not drawn in conformity with the law, ***matter that is essential to a cause of action should not be struck*** and it is error to do so. [Citation.] Where a whole cause of action is the proper subject of a pleading challenge, the court should sustain a demurrer to the cause of action rather than grant a motion to strike. [Citation.]” (*Ibid.* [emphasis added].) Here, Defendants are improperly using a motion to strike as a substitute for a demurrer. (*Warren v. Atchison, T. & S. F. Ry. Co.* (1971) 19 Cal.App.3d 24, 41 [a motion to strike cannot be used as a substitute for a demurrer].)

Accordingly, the Court **DENIES** the motion to strike the **2nd, 3rd, 9th, and 11th causes of action** from the Complaint.

B. Punitive Damages

A motion to strike is the proper vehicle to attack a claim for punitive damages where facts alleged do not rise to the level of fraud, malice or oppression. (*Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) A plaintiff may recover exemplary or punitive damages where it is proven that “the defendant has been guilty of oppression, fraud or malice.” (Civ. Code § 3294(a).)

As defined in the statute, “malice” is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others,” while “oppression” is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294(c)(1) and (2).) As used in the statute, “despicable conduct” is conduct that is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*American Airlines, Inc. v. Sheppard Mullin Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050.)

To support an award of punitive damages on the basis of conscious disregard of the safety of others, a plaintiff “must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Penner v. Falk* (1984) 153 Cal.App.3d 858, 867.)

“Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “[A] conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of ‘oppression, fraud, or malice, express or implied,’ within the meaning of section 3294.” (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) The pleading must contain factual allegations of wrongful motive, intent, or purpose. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 317.)

“Because punitive damages are imposed ‘for the sake of example and by way of punishing the defendant (§ 3294, subd. (a)), they are typically awarded for intentional torts such as assault and battery, false imprisonment, intentional infliction of emotional distress, defamation, nuisance intentionally maintained, fraud, trespass...” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1212.) “The mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages...Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.” (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.)

An employer will not be liable for punitive damages based on the acts of its employees, “unless the employer had advanced knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge of conscious disregard, authorization,

ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (C.C.P., § 3294(b).) Officers, directors and managing agents are the employees of the corporation who exercise substantial discretionary authority over decisions that ultimately determine corporate policy; the acts of an ordinary supervisory level employee do not subject the corporation to punitive damages. (*White v. Ultamar* (1999) 21 Cal.4th 563, 573.)

Thus, when the defendant is a corporation, an award of punitive damages against that corporation must rest on the malice of the corporation’s employees. (*Wilson v. Southern California Edison Co.* (2015) 234 Cal.App.4th 123, 164.) A plaintiff must plead that the wrongful acts of employees of the defendant corporation were done with the knowledge or under the express direction or ratification of an officer, director or managing agent. (*Scannell v. County of Riverside* (1984) 152 Cal.App.3d 596, 614.)

Defendant argues that Plaintiff fails to allege a claim against them as corporate employers because the Complaint does not contain “any allegation an officer, director, or managing agent directly committed, or authorized or ratified the act, condition, or omission that supports plaintiff’s punitive damages request.” (Motion, p. 5.) Although the Complaint alleges that “at all times mentioned herein, each of the Defendants was the agent, servant or employee of the other Defendants, and at all times mentioned herein acted within the scope of such agency” (Complaint, ¶ 4), there are no allegations of authorization or ratification. Thus, the Court **GRANTS** the motion to strike **punitive damages** from the Complaint, with 30 days leave to amend.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2602920	DREAD vs WEIDNER PROPERTY MANAGEMENT LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A complaint, with certain exceptions, need only contain a “statement of the facts constituting the cause of action, in ordinary and concise language” (C.C.P. § 425.10(a)(1)) and will be upheld “so long as